

I. The Basics of Law

A. What *Is* Law, anyway?

When you hear the word *law*, you might think of police officers, courtrooms, or even something from a TV drama. But in the legal world, *law* means something specific—and surprisingly complex. It can refer to written statutes passed by lawmakers, or it might mean case law, which is based on past judicial decisions (what we call *common law*). That is different from how we talk about the "laws" of science or nature, like gravity or thermodynamics.

Even legal experts cannot agree on a single definition. *Black's Law Dictionary*, one of the most important legal references out there, dedicates an entire page just to defining *law*. But most definitions boil down to this:

Law is a set of enforceable rules created by an authority to guide and control how people behave in society.

From a small family unit to an entire nation, everyone lives by rules. Imagine if every person made their own laws—chaos, right? That is why we rely on an authority, whether it is your parents setting a curfew or the U.S. Congress passing legislation. And to keep these laws effective, there are usually consequences for breaking them, like fines, jail time, or even more serious penalties.

What makes American law stand out from legal systems in other countries? It is rooted in a government that is *by the people, for the people*. This idea comes straight from Abraham Lincoln's famous Gettysburg Address. Our legal system was built to serve a democracy—and that shaped the way our laws developed.

B. A Law vs. *The* Law

Here is a key distinction:

A law is just one rule.

The law is the bigger picture—an entire system made up of many rules, court decisions, and guiding principles.

The law is not just about what is written in books. It also includes how those rules have been interpreted over time by judges and courts. These interpretations and principles help guide future decisions and make the system consistent. This idea of relying on past decisions is called *precedent*, and it is important in law.

C. Where Do Laws Come From?

In the U.S., laws generally come from two main sources:

Statutory Law – These are written laws passed by legislative bodies like Congress or state legislatures. Think of them as formal rules written down in codes and statutes.

Common Law – These are legal doctrines that evolve from judicial decisions. They are not written down in the same way statutes are, but they are just as important. Judges look at how similar cases were decided in the past and apply the same logic. This tradition is called *stare decisis*, which means “to stand by things decided.”

While statutes are considered the “written law,” common law was once known as the “unwritten law” because it developed through practice rather than formal legislation. Over time, however, these unwritten rules began showing up in casebooks, legal briefs, and court decisions.

D. Why It Matters

Whether a law is written down by a legislature or comes from centuries of judicial rulings, both are essential to how justice works in the U.S. today. Attorneys, judges, and lawmakers all rely on this mix of statutes and precedents to determine what is fair, what is legal, and what’s enforceable. Understanding where laws come from and how they work gives you a powerful tool for navigating society—and for questioning and shaping it, too.

II. Sources of Law

In a democracy, the people are the source of all power, including the power to create law, which is exercised through elected officials. There are at least 51 legal systems operating concurrently within the United States: the federal system and the systems of 50 independent states. Accordingly, the sources of substantive law are primarily constitutions, statutes enacted by legislatures, regulations adopted by administrative agencies, and the common law.

A. Common law- English Tradition

Our common law tradition stems from England and the arrival of English colonists in America as previously stated. This tradition is primarily founded on court decisions (aka common law) versus statutes. Even when statutes are the issue in a case, our system still relies heavily on judges to interpret and apply those statutes. The one exception is the State of Louisiana, which was originally settled by the French and adopted a civil law tradition from France, focusing more on statutory and codified law versus common law.

Our English tradition, stemming from the Norman Conquest of England in 1066, brought with it Latin terminology that we still use in the legal system today, such as *lis pendens*, *ad hoc*, *habeas corpus*, *certiorari*, etc. In addition, it created the concept of the circuit courts wherein judges of the

high courts in England would “travel the circuit” around the six regional circuit courts deciding cases. In the United States, most states have a level of trial court called a circuit court and it is usually a county or regional court with general jurisdiction to hear a wide variety of cases. In Maryland, our circuit court is a court of general jurisdiction, such as the Circuit Court for Baltimore County. We have 24 circuit courts - one in each County and one for Baltimore City.

Stare decisis, another Latin phrase we inherited from our English tradition, is the concept that once a court decides a matter, similar cases (also known as analogous cases) will be decided the same way unless a need for a change in the law is shown. Stare decisis means “let the decision stand” or to “stand by things decided.” Stare decisis provides for stability in the legal system in that a litigant with a case similar to one that was decided by the courts previously should be able to look at that prior decision and have a good idea as to how their case will be decided.

When analyzing a client’s potential case, attorneys research case law to determine how similar cases were decided in that jurisdiction. If the client’s case is analogous (similar) to the other decided cases, then the attorney can advise the client that their case will be decided in the same manner, unless the attorney can argue that the law needs to be changed. If the client’s case is distinguishable or different from other decided cases, then it is possible that the court will not decide the case in the same manner.

1. Equitable Remedies v. Legal Remedies

In the past, our court system was divided between *courts of law*, which handled cases involving suits for money damages, and *courts of equity*, which handled cases that involved remedies other than money damages, such as an injunction (an order to stop doing something) or specific performance (an order to do something). This distinction and separation was another tradition we adopted from English common law. In some instances where a party was seeking both an equitable remedy (an order to stop doing something) and a legal remedy (money damages) in the same case, they would be required to file two separate lawsuits: one in the court of equity and one in the court of law. Now, however, in most instances the courts of equity and courts of law (as they were called in the past) have merged and all types of claims are handled in the same court, in the same case. However, there are still areas in which the claims are tried separately. For example, under California law, a plaintiff has the right to a jury trial for legal claims but not for equitable claims. In cases involving both legal and equitable claims, the court typically conducts a bench trial for the equitable claims first, followed by a jury trial for the legal claims.

As previously stated, equitable remedies are court rulings that do not involve the payment of money damages. Depending on the nature of a case, a court may rule that a party is entitled to an injunction (an order directing a party to stop doing something) or specific performance (an order directing a party to do something). An example of an injunction would be a case where your neighbor, who recently joined a heavy metal rock band, conducts band practices in the back yard adjacent to your home at 2:00 am each night. Not being able to sleep, and your neighbor’s actions being in violation of local noise ordinances, you file suit asking a court to issue an injunction to prevent your neighbor from practicing after 11:00 pm. If you are successful, the court will issue an injunction banning the activity after 11:00 pm. You have not received any money for your case

- as money would not resolve the problem. You received an injunction or court order to stop your neighbor's actions which did resolve the problem.

EXAMPLE: You enter into a real estate contract to purchase a home. After the contract was signed, but before settlement (the meeting to finalize the sale of the house), the seller decides that he does not want to sell his home to you and tries to back out of the contract. You can take the seller to court, asking the court for an order of specific performance, requiring the seller to attend settlement and sell you the house.

Legal remedies are simply money damages. If you sue someone and ask the court to provide you with an award of money for your losses, you are seeking legal damages.

EXAMPLE: You slip and fall in a store on a puddle of water that was left in the aisle. As a result, you injure your back and incur \$10,000 in medical bills and \$2,000 in lost wages. Your suit for \$12,000, plus any pain and suffering, is a suit for legal damages. You do not need the store to do something or stop doing something- you need money damages to pay for your out-of-pocket costs and to compensate you for your pain and suffering.

B. Classification of law- Constitutional, Statutory, Administrative, Judicial Opinions

1. Constitutional law

Constitutional law is that law found in the U.S. Constitution and the constitutions of the 50 states. The US Constitution is the highest law of the land and takes precedence over all other laws, including state constitutions. Where there is no conflict, a state constitution is the highest law of an individual state.

The Supremacy clause, Article VI, Section 2 of the Constitution, states that

"This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding."

Simply put – federal law will override state law on matters under the Constitution or federal law passed pursuant to Constitutional powers. This is known as the doctrine of *preemption*. Where a state law conflicts with a federal law, if the matter is one arising from federal powers, federal law controls and preempts conflicting state law.

EXAMPLE: A federal law requires all interstate tractor-trailers to have concave mud flaps on their rear wheels for safety reasons. A state law banning concave mud flaps would conflict with this requirement and would be preempted by the federal law. The reason the state would be

preempted from having a different law is the federal government has an interest in facilitating interstate commerce and conflicting state laws is at odds with that interest.

EXAMPLE: Another example is the Family Medical Leave Act (FMLA), which requires employers of 50 or more employees to provide 12 weeks of unpaid leave to employees in certain medical situations pertaining to immediate family members. If a state passed a law saying family medical leave only applied to employers with 100 employees or more. State law would be preempted by the federal law because it is more restrictive than the federal law.

2. Statutory law

Statutory laws (also known as codes) are those laws passed by a legislative body at the federal and state levels. Congress is the federal legislative body, and it passes bills (by majority vote of both the Senate and the House of Representatives) that are effective once signed into law by the President. If the President vetoes the bill, it can become law if the veto is overridden by a two-thirds vote of each chamber of Congress.

In Maryland, the legislative body is known as the Maryland General Assembly. Like Congress, it contains two chambers: a state Senate and a state House of Delegates. Bills become law in Maryland the same way they do at the federal level, by passing both houses of the state legislature by a majority vote and either being signed into law by the Governor or, if the Governor vetoes the bill, an affirmative vote of two-thirds of each chamber to override the veto.

Statutory laws tend to be broad, especially laws that set out the powers of federal and state executive branch agencies. Executive branch agencies are those agencies that deal with how the government operates and they enforce the laws passed by the legislature. In order to assist the legislature in an area that requires exceptional skills and more oversight than the legislature can afford or where it lacks expertise, legislatures establish administrative agencies, boards, and commissions. An agency of this type is created by an enabling act, which authorizes the agency to exist, and which lists its jurisdiction and areas of responsibility. An example in the Internal Revenue Service (IRS), this is a federal executive branch agency that enforces tax laws. The enabling statutes that created the IRS set out its broad powers, but the agency itself passes more detailed rules and regulations on how it interacts with citizens and businesses regarding the imposition and collection of taxes. An example of a regulation would be a rule detailing by what date a person needs to file for an extension to file their federal income taxes.

Administrative agencies have become so pervasive that they often are referred to as the fourth branch of government because they have executive, legislative and judicial powers as detailed below. Some additional examples of federal administrative agencies are the Immigration and Naturalization Service (INS), the Social Security Administration (SSA), the Securities and Exchange Commission (SEC), the Federal Communications Commission (FCC), the Equal Employment Opportunity Commission (EEOC), the Food and Drug Administration (FDA), and the Environmental Protection Agency (EPA). There are many others in existence.

Notwithstanding some restrictions, a legislative body has freedom to assign some legislative authority to an agency, which allows an agency to enact rules and regulations to clarify or explain statutes within its authorized area of expertise. This rulemaking power is an exercise of an agency's quasi-legislative authority. Although not equivalent to a statute, administrative rules and regulations hold much of the same power of law as statutes.

Also, an administrative agency often has the executive authority to investigate and enforce its regulations, as well as the judicial authority to interpret its own rules and regulations. An administrative law judge or a hearing officer presides over hearings which are similar to trials. However, neither the judge nor the hearing officer is required to be a lawyer by many administrative agencies; this is allowed as part of an agency's quasi-judicial function. If a violation is deemed to have occurred, the agency may impose civil sanctions. However, no one can be incarcerated by an administrative agency. On the other hand, when criminal proceedings are necessary, the matter is referred to the U.S. Justice Department (federal prosecutor) or to the local district attorney for prosecution.

The rules, regulations, and decisions of an administrative agency are sometimes subject to review and interpretation by courts. Usually, before judicial review can be done, an appellant or petitioner must prove that they have exhausted all available administrative remedies. In other words, an appellant or petitioner must utilize all of the procedures and remedies at the administrative level before they can seek judicial relief.

3. Judicial law

Judicial opinions (aka case law or common law) are decisions of state or federal appellate courts. Through court cases, when a case is appealed after trial, an appellate court will review the case based on questions of law raised in the case and make a final decision on the applicable law in the case and determine if the case was properly decided. These appellate opinions are known as precedent and under the doctrine of stare decisis, are used when analyzing a client's case. There are three main types of appellate court opinions: majority, concurring and dissenting.

A majority opinion is the ruling of the court for precedent purposes. A majority opinion occurs when over 50% of the judges agree to the reasoning and the conclusion. A concurring opinion is an opinion of one or more judges (less than 50%) that agrees with the conclusion of the majority's opinion but for a different reason. A concurring opinion is not the opinion of the court for the purposes of precedent. A dissenting opinion is one or more judges that disagrees with the reasoning and the conclusion of the majority opinion.

i. Civil and Criminal

Laws are either civil or criminal. Criminal laws must be passed by a legislative body. No act is a crime unless a legislative body has passed a law (signed by the chief executive) denoting it as a crime. Criminal laws set forth the elements of crimes (what must have been done for the act to be criminal) and the penalties for such crimes, such as up to 5 years in prison and/or a fine of \$10,000.

Maryland Annotated Code, Criminal Law Article

§ 3-402. Robbery.

(a) A person may not commit or attempt to commit robbery.

(b) A person who violates this section is guilty of a felony and on conviction is subject to imprisonment not exceeding 15 years.

Civil laws can be statutory laws enacted by a legislative body or they can be common law (created by judges through judicial opinions). Civil laws can cover everything from divorce, taxes, estates, real estate, corporations, etc. basically anything not considered a criminal law. Areas of civil law not covered by statutes are found in judge made law, such as negligence.

Maryland Annotated Code, Commercial Law Article

§ 2-205. Firm offers.

An offer by a merchant to buy or sell goods in a signed writing which by its terms gives assurance that it will be held open is not revocable, for lack of consideration, during the time stated or if no time is stated for a reasonable time, but in no event may such period of irrevocability exceed three months; but any such term of assurance on a form supplied by the offeree must be separately signed by the offeror.

ii. Substantive or Procedural

Laws are either substantive or procedural. Substantive laws set forth your legal rights and obligations. An example would be a statute detailing what murder in the first degree is – the premeditated killing of another human being. Substantive laws focus on the “what” – what is murder in the first degree. The above examples on robbery and firm offers are substantive laws.

Procedural laws set forth the process- the “how” the prosecutor goes about establishing murder in the first degree. Was the defendant given Miranda rights? What was the chain of custody of the alleged murder weapon? Was the arrest warrant supported by probable cause? Can certain evidence be admitted as trial if it is prejudicial to the defendant? Did the charging documents provide the defendant with proper notice of the crime they are being charged with?

Maryland Annotated Code, Courts & Judicial Proceedings Article- Statute of Limitations for civil action.

§ 5-101. Three-year limitation in general.

A civil action at law shall be filed within three years from the date it accrues unless another provision of the Code provides a different period of time within which an action shall be commenced.

III. Court System

A. Federal Court System

The federal court system is a three-tier system. The highest court in the federal system is the U.S. Supreme Court. Rulings of the U.S. Supreme court are mandatory authority throughout the U.S. Below the U.S. Supreme Court are the U.S. Circuit Courts of Appeal. There are 11 numbered circuit courts of appeal, as well as a U.S. Circuit Court of Appeal for the Federal Circuit and a U.S. Circuit Court of Appeal for the D.C. Circuit- 13 U.S. circuit courts of appeal in total.

The final tier of the federal court system is the trial court, also known as the U.S. District Courts. There is a minimum of one U.S. District Court in each state, with larger states having multiple U.S. District Courts. Maryland has one U.S. District Court for the District of Maryland with two locations - the main court location is in Baltimore, Maryland and a satellite location is in Greenbelt, Maryland. As stated, larger states have multiple U.S. district courts and these are separate courts, not one court with multiple locations. For example, Virginia has two U.S. district courts - the U.S. District Court for the Eastern District of Virginia and the U.S. District Court for the Western District of Virginia. They are separate and distinct courts.



[DIAGRAM-levels-of-courts1.jpg \(640×442\) \(judiciallearningcenter.org\)](#)

B. Typical State Court Systems

The vast majority of criminal and civil cases in the United States are filed in state courts.

1. Limited Jurisdiction Trial Courts

In most large urban states and many smaller states, there are four and sometimes even five levels of courts. The lowest level is that of the limited jurisdiction trial courts. These are usually county, district or municipal courts with original jurisdiction to hear minor criminal cases (petty assaults, traffic offenses, and breach of peace) and civil cases involving monetary amounts up to a fixed ceiling (no more than \$10,000 in most states and far less in many states). Most disputes that wind up in court are handled in the 18,000-plus limited jurisdiction courts, which are estimated to hear more than 80 percent of all cases.

One familiar limited jurisdiction court is small claims court, with jurisdiction to hear civil cases involving claims for amounts ranging between \$1,000 and \$5,000 in about half the states and for considerably less in the other states (\$500 to \$1,000). The advantage of the small claims court is that the trial procedures are informal, it is often located in a neighborhood outside the business district, it is usually open after business hours, and it is speedy. Lawyers are not necessary to present the case and in some states are not allowed to appear in court.

Limited jurisdiction courts are usually limited to bench trials only, no jury trial due to the smaller value of the cases and the relatively quick nature in which the court cases are handled.

2. General Jurisdiction Trial Courts

Large civil cases and felony criminal matters are heard in general jurisdiction trial courts, or courts of general jurisdiction. These go by a variety of names: superior, circuit, district, or common pleas court (New York calls its general trial court the supreme court). These are the courts in which people seek redress for incidents such as large dollar value civil cases, usually with values from \$10,000 upwards, family law cases, juvenile cases, etc. These state courts also prosecute those accused of serious crimes, such as murder, rape, robbery, etc. In general jurisdiction courts, there may be either bench trials or jury trials.

Although courts of general jurisdiction can hear all types of cases, in most states more than half of the cases involve family law matters (divorce, child custody disputes, and the like). A third are commercial cases, and slightly over 10 percent were devoted to car accident cases and other torts. Most states also have specialized courts that hear only a certain type of case, such as landlord-tenant disputes or cases involving the probate of wills.

3. Appellate Courts

Finally, all states have a system of appellate courts. Most states (42) have a two-level appellate court structure with a lower-level intermediate appellate court and a higher-level appellate court, usually called the supreme court. Eight states have a single level appellate court with only a supreme court. Appellate courts review cases from the trials courts where the parties have properly objected to various legal issues/questions at trial, preserving the matter for appellate review. Appellate courts do not re-litigate the case. There are no witness testimony or evidence entered at the appellate court. The case is reviewed based on the trial court transcript and on the legal arguments presented by the parties on appeal.

In many states, the general jurisdiction trial courts have appellate functions over administrative agency decisions and/or decisions from limited jurisdiction trial courts.

C. Maryland Court System

The Maryland court system is a straightforward court system. It consists of four levels: two appellate courts and two trial courts.

The highest court in Maryland is known as the Supreme Court of Maryland, formerly the Court of Appeals. The lowest appellate court is known as the Appellate Court of Maryland, formerly the Court of Special Appeals. These courts review a trial court's (District or Circuit Court) actions and decisions in given cases and decide whether the trial judge properly followed the law and legal precedent.

The “highest” trial court, the Maryland court of general jurisdiction, is known as the Circuit Court. Maryland’s Circuit Courts generally handle more serious criminal cases, major civil cases, including juvenile and other family law cases such as divorce, custody and child support and most cases appealed from the Maryland District Court, orphans’ courts and certain administrative agencies. Circuit courts also hear domestic violence cases. Each Maryland County and the City of Baltimore has a circuit court for 24 in total.

The “lowest” trial court, Maryland’s limited jurisdiction court, is known as the District Court. Most people experience the court system in Maryland through the District Court. Cases heard here include motor vehicle (traffic) and boating violations and other misdemeanors and specified felonies, domestic violence and peace order petitions, landlord-tenant disputes, small claims, and other civil cases involving limited dollar amounts, and replevin (recovery of wrongfully taken or detained goods). Each county and the City of Baltimore has at least one District Court location.

Maryland also has some specialized courts: the Orphans’ Court and the Office of Administrative Hearings. The Orphans’ Court is a specialized court that handles wills, estates, and other probate matters and limited aspects of guardianship. In some counties, Harford, Howard and Montgomery, the Circuit Court judges serve as the Orphan’s Court. In other counties, it is a separate court with separate judges. The Office of Administrative Hearings, staffed with administrative law judges, listens to contested executive branch administrative law cases, except for those concerning officials or agencies exempted by law.

For a short handout on the Maryland Court System - [Maryland Court System Explained](#)

The Maryland court system can be found online at www.courts.state.md.us

C. Trial v. Appellate

Legal cases begin at the trial court level. Trials can either be jury trials or bench trials (with only a judge, no jury). Jury trials usually have between 6-12 members, depending on the court and if the case is civil versus criminal. In Maryland, bench trials are held on the District Courts only. Circuit Courts can have jury trials or bench trials.

Trials serve two purposes: 1) determine the questions of fact in the case (i.e., what happened) and 2) determine questions of law (i.e., are procedural laws followed? Can certain testimony be allowed at trial?). In jury trials, the jury determines questions of fact. The jury decides what happened in a case based on the evidence presented, such as witness testimony, documents, pictures, videos, etc. In jury trials, the judge determines the questions of law in the case, such as whether or not certain testimony can be entered into evidence and what the law is to instruct the jury on for their deliberations. In bench trials, there is no jury, so the judge is the sole determiner of questions of fact and questions of law in the case.

Appellate courts hear appeals of cases from the trial court level. Appellate courts ONLY consider questions of law in case. They do not deal with questions of fact - that is for the trial

court. In considering questions of law, a legal issue must have been properly objected to at trial to have that issue considered on appeal. For example, if you believe prejudicial evidence was entered into your case at trial and your attorney failed to object at trial to this evidence being admitted, if you subsequently lose your case, you cannot appeal on the grounds that this prejudicial evidence was entered at trial because you never objected to it at trial. This is why when you watch a trial on TV, you will hear attorneys from both sides objecting to evidence being entered in - whether it is testimony, documents, videos, etc. They are preserving the matter for an appeal if they lose the case.

D. Interpretation and Application of Law in Court

1. Stare Decisis

We have already touched on what stare decisis is. The concept of deferring to prior appellate court precedent when deciding new cases today unless there is a need for change in the law. The role stare decisis plays in litigation is very important. Both at the trial and appellate levels, prior case law is what is used by both sides to argue their case. This provides for stability in the law.

Without stare decisis, an attorney would not know how to advise their client on the potential outcome of a case in order for their client to make informed decisions about settling the case, going to trial, taking a plea deal, etc. And the attorney would have a very hard time deciding what law to use to argue their side of a case. It would make litigation a “crap shoot.”

2. Deference to legislation

In litigation, statutes supersede case law. This means whenever the legislature enacts a statute on a matter - whether it is civil or criminal, that statute controls even if the issue was previously one that was only found in case law decisions. Once the legislature enacts a statute, the role of the court is to interpret and apply that statute. If the legislature believes the courts have improperly interpreted the statute, the legislature can amend the statute, changing the language to change the interpretation. In some instances, the legislature will specifically enact a statute to change what was previously decided by common law (case law), in order to change the law. This is known as a statute in derogation of the common law. When this happens, the old case law no longer controls and the new statute (which will be interpreted and applied by the courts) controls and is the new law.

In addition to statutes, courts interpret and apply constitutional law to cases. In interpreting and applying statutory and constitutional law, judges may look to the ordinary meaning of a law and give the words of the law their everyday meaning. A judge can also look to various legal canons of construction when interpreting a statute- one such canon is to give effect to every word of a statute- no words are superfluous or meaningless. If the legislature took the time to put a word or words into the law, they are there for a reason and must be given effect in interpreting and applying the law.

Other judges may look to the legislative history of a statute- what occurred at the time the law was enacted, including legislative committee reports and committee hearings. And still some judges will look at the statutory context of a statute- looking at the other statutory provisions related to the statute at issue to interpret it. In what section of a code is the statute contained, what do the other statutes around the one in question say, etc. Some judges will use a combination of methods in interpreting and applying a statute to a legal case.

3. Standing

Standing is a legal concept that determines whether a person has the right to bring a lawsuit in court. To have standing, a person must show that they have suffered a specific, concrete injury or are directly affected by the issue they are challenging. This means you cannot sue someone just because you do not like a law or policy, you must show that it has actually harmed you in a real and personal way. Standing is important because it ensures that courts only decide real disputes involving actual harm, not theoretical or abstract disagreements.

An example of standing can be found in the case *Lujan v. Defenders of Wildlife*, 504 U.S. 555 (1992). In this case, an environmental group tried to sue the government over a rule that limited the application of the Endangered Species Act to the United States and its territories. The group claimed the rule would harm endangered animals abroad, but the Supreme Court said the group did not have standing because they could not show a direct injury to themselves. They did not prove, for example, that they had specific plans to visit the affected areas or that their personal interests were harmed. This case shows how standing requires a real, personal connection to the issue being challenged.

4. Cases or Controversies

Courts will only decide lawsuits that present actual cases or controversies. What this means is that the dispute must be an actual one, not a hypothetical one. If you think you may incur damages in the future because of some act of your neighbor, you cannot bring a lawsuit against your neighbor until you have actually incurred those damages. This doctrine stems from the constitutional requirement that courts only hear "cases" or "controversies" under Article III of the U.S. Constitution. Specifically, section 2 of Article III states:

The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under

Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

EXAMPLE: You neighbor tells you he intends to start a band, and they may be practicing late at night. You are worried you are not going to be able to sleep when this happens, so you file a lawsuit asking the court to prevent your neighbor from practicing with his future band after 10pm. Since your neighbor has not formed a band and is not yet practicing late at night (and he may never do so), there is no case or controversy yet for the court to act on and your case would be dismissed.

Another term for this is ripeness- your case must be ripe for judicial review. Again, this means you have actually incurred some injury (physical, mental, financial, etc.) for which the court can provide redress under the law.

Consistent with Article III's requirement of cases or controversies, is the concept of courts not deciding cases that have become moot. In the law, mootness refers to a situation where a case no longer presents an actual, ongoing dispute, meaning the issue has already been resolved or is no longer relevant. U.S. courts are only allowed to decide cases that involve a real, live controversy. If the underlying issue has been resolved or circumstances have changed such that the court's decision would have no practical effect, the case is deemed "moot" and is usually dismissed.

An example of a moot case is *DeFunis v. Odegaard*, 416 U.S. 312 (1974). In this case, a student, Marco DeFunis, sued the University of Washington Law School, claiming he was denied admission due to affirmative action policies. The case reached the U.S. Supreme Court, but by the time it was heard, DeFunis was already in his final semester of law school due to a lower court's order allowing him to enroll. Since he was about to graduate, the Court ruled the case was moot, as a decision on the admissions policy would have no impact on DeFunis personally. This case illustrates how a case can lose its legal standing if the issue it presents is no longer active or relevant.

IV. Civil Litigation/Alternative Dispute Resolution (ADR)

A. Alternative Dispute Resolution

1. Negotiation

Negotiation is the simplest form of alternative dispute resolution (ADR) that many do not even recognize it as such. In the legal field, we negotiate every day with opposing counsel and parties to try and settle a case early. It saves everyone time and money.

Negotiation can take place through the parties' attorneys, or the parties themselves can try and resolve a dispute on their own. There is no required formal process. Sometimes negotiation

takes the form of an exchange of written correspondence, sometimes it is done over the phone or in person. It is very simply, the process of two or more parties trying to resolve a dispute very informally.

2. Mediation

Mediation is a more formal step in the ADR process from negotiation. Mediation involves the use of an independent, third-party mediator- someone not involved in the case to listen to the parties and aid the parties in trying to resolve their disputes. The mediator does not impose a decision on the parties or tell one party they are wrong, and the other party is right. The purpose of the mediator is to bring the parties together to listen to the dispute and work with the parties so the parties can work towards a resolution of their dispute.

Mediation is usually voluntary and non-binding. Meaning, if one of the parties decides at a later date that they want to go to court, they can still file the litigation and proceed to court. However, the parties can always agree to binding mediation if they choose. In some court systems, like Maryland, parties to circuit court civil cases are required (unless they opt out early in the case) to attempt at least two (2) hours of mediation before a case can proceed to trial in an effort to get the parties to resolve their differences without the need for a trial.

3. Arbitration

Of the types of ADR discussed here, arbitration is the most formal method. In arbitration, the parties agree to have their dispute heard and resolved by a third-party arbitrator (or arbitrators) in lieu of filing suit in court. Arbitration hearings can have some of the hallmarks of litigation with parties able to conduct some limited discovery, file limited motions, bring in witness testimony, present evidence, etc. in support of their claim. In mediation, it is usually just the parties and their attorneys who attend and present the dispute to the mediator.

In arbitration, the process is more formalized and can almost resemble a mini trial. Arbitration can be binding or non-binding but is usually binding as the parties agree to this method of dispute resolution instead of going to court. Where the arbitration is binding, the arbitration award can be filed in court and executed on the same as a court judgment from a trial court.

B. Civil Litigation

1. Pretrial

The pre-trial phase of civil litigation can start as soon as an attorney accepts the case. Researching the facts and the law to determine how best to handle a client's case is the start of the pre-trial phase. The attorney researches the law to determine what causes of action a client may have and who are the proper parties to a lawsuit. Once this is determined, the attorney will usually send a demand letter to the opposing parties advising them of the claims and the potential for litigation if the matter cannot be resolved. If the parties cannot resolve the matter through negotiation, the next step is usually to file suit in court.

i. *Jurisdiction and venue*

In determining which court to file suit in, an attorney must consider both **subject matter jurisdiction and personal jurisdiction**.

Subject matter jurisdiction focuses on which trial court can hear the case. As mentioned previously, most states have two levels of trial courts. A lower-level trial court, known as the district court in Maryland that hears small civil matters, misdemeanor criminal trials, traffic tickets, landlord/tenant claims, etc. and a higher level trial court, known as the circuit court in Maryland, that hears larger civil cases, felony criminal matters, juvenile cases, family matters, etc. Depending on the type of case a client has, will dictate which court - a lower-level court (aka district court) or a higher level court (aka circuit court) suit will be filled in.

For example, in Maryland, family law cases (divorce, child support, visitation, child custody) are exclusively within the subject matter jurisdiction of the circuit courts. Whereas cases for less than \$5,000 in damages are exclusively within the jurisdiction of the district courts.

Once you determine in which level of trial court you can file your case, **personal jurisdiction** focuses on whether or not the state can compel the defendant in the case to appear before it. In Maryland, the state courts can exercise jurisdiction over individuals and business who reside, operate, and/or work in Maryland. "A court may exercise personal jurisdiction as to any cause of action over a person domiciled in, served with process in, organized under the laws of, or who maintains his principal place of business in the State." Md. Code Ann., Cts. & Jud. Proc. § 6-102 (LexisNexis, Lexis Advance through all acts of the 2024 Regular Session).

This concept is referred to as "minimum contacts." This was made famous in the case of *International Shoe Co. v. Washington*, 326 U.S. 310 (1945), in which the U.S. Supreme Court held that in order to sue an out-of-state corporation in a state, the corporation had to have some minimum contacts (business relationships or activities) within the state in order for the courts of that state to exercise personal jurisdiction over the out-of-state corporation.

Other jurisdictional concepts are original jurisdiction versus appellate jurisdiction. **Original jurisdiction** is the ability of a court to hear a case for trial. **Appellate jurisdiction** is the ability of a court to hear a case on appeal only - after a trial court decision is reached. **Exclusive jurisdiction** is when only one type of court can hear a particular case. For example, in Maryland, small claims actions of less than \$5,000 are exclusively within the jurisdiction of the Maryland state district court. Even if the plaintiff wanted to have their case in circuit court in Maryland, they cannot as the Maryland circuit court does not have jurisdiction for matters under \$5,000. **Concurrent jurisdiction** occurs when more than one court can hear a type of case, and the plaintiff usually gets to choose which court to file its case. In Maryland, civil cases over \$7,500 can be filed either in the Maryland state District Court or the county Circuit Court. These courts have concurrent jurisdiction to hear these civil claims.

Venue deals with the concept of which specific court to file in when there is more than one court with jurisdiction in the case. In a criminal trial, venue is within the jurisdiction where the crime

was committed. A pretrial motion for a change of venue may be requested by a defendant because of pretrial publicity or public reaction to the case which makes it impossible to obtain a fair and impartial jury in one venue. A plaintiff cannot just sue in any court they feel like. In most instances, a plaintiff can only sue a defendant in the following places: 1) where the defendant lives, 2) where the defendant works or carries on their principal business; or 3) where the incident occurred that gave rise to the lawsuit, such as a car accident. Md. Code Ann., Cts. & Jud. Proc. § 6-201 (LexisNexis, Lexis Advance through all acts of the 2024 Regular Session).

EXAMPLE- Suppose a person who lives in Baltimore County gets into a car accident with an individual who lives and works in Baltimore City, and the car accident occurred in Howard County. If the plaintiff is the resident of Baltimore County - then the lawsuit can only be filed in Baltimore City (as the defendant lives and works there) or Howard County (where the accident occurred). The lawsuit cannot be filed in Baltimore County as the defendant has no legal presence/relationship to Baltimore County for a court there to compel the defendant to appear and answer the lawsuit, even though it is more convenient for the plaintiff to file suit in Baltimore County because they live there.

Once the attorney determines that there is a valid cause of action, the proper court in which to file the case and the proper party to file against, a complaint is filed in court to start the litigation.

Complaint – the document (called a pleading) that starts a lawsuit and details the plaintiff's claims against the defendant and what remedies the plaintiff is seeking.

Summons - a court notice to be served on the defendant with the complaint advising the defendant of the commencement of the lawsuit and the initial time period the defendant has to file an answer to the complaint or risk a default judgment.

Answer - the defendant's response to the complaint. Some jurisdictions allow for a general denial of the claims in the complaint. Other jurisdictions require each statement in the complaint to be answered. The answer will also include any affirmative defenses of the defendant against the plaintiff, such as self-defense. Affirmative defenses are those where the burden is on the defendant to establish the defense.

Default judgment - if the defendant fails to answer the complaint in the required time period (usually 30 days after service), the plaintiff may file a motion in court asking the court to issue a default judgment in its favor.

ii. Discovery

After the lawsuit is filed, the pre-trial stage continues with the discovery stage and motions practice. **Discovery** in litigation is the process of continuing to find out information from witnesses and the opposing party about the case to prepare for settlement negotiations or trial. All of the research an attorney needs in a case cannot be done prior to filing suit. Once the lawsuit is filed, more options are available to the attorney to obtain critical information from potential witnesses and the opposing party. Some common discovery tools used by attorneys

are: **interrogatories, request for production of documents, depositions, and requests for mental/physical examinations** (where relevant to the case).

Interrogatories are written questions (usually limited in the number that can be sent from one side to the other) that are answered under oath by the opposing party. Both the plaintiff and defendant will send interrogatories to one another to find out specific information about the claims and defenses of each side, including names and contact information of witnesses, specific defenses to be asserted, more detailed information about the facts alleged in the complaint, information about any expert witnesses a party intends to call at trial, etc.

Requests for production of documents are requests between the parties to a case for the production of materials. Requests are not limited to only documents, but include any tangible and intangible items a party has relating to the case, such as letters, contracts, emails, photos, recordings, computer files, etc. Each side is required to provide the other side with the opportunity to review and receive copies of these items when they are part of a request for production of documents.

Depositions are the pre-trial questioning of a witness under oath. A party will send a notice of deposition to the witness advising them of the day, time, and location of the deposition. Both sides of the case are present at the deposition and the questioning occurs similarly to in trial, where the party calling the deposition questions the witness first and the other party gets to question the witness second. Depositions are recorded - sometimes only transcribed in writing but sometimes recorded via video and can be used at trial as testimony if a witness is unavailable or for impeachment purposes if a witness changes their story at trial. Depositions can also include a request to a witness to produce documents in their possession relevant to the case. Where a request to produce documents mentioned above is only between the parties to the case, a *notice of deposition duces tecum* is a request to not only appear for a deposition but also to bring requested documents to the deposition for review by the parties.

Finally, a **request for mental and/or physical examinations** are used in cases where a party's mental or physical issues are part of the case, such as in an auto accident case where a party complains of "whiplash" or claims of nightmares, anxiety, etc. As part of the request for production of documents, the requesting party will always ask for any reports of medical professionals done in the case, but a party will also want to have their own medical experts conduct an examination of the other party to either confirm or refute the damages claimed.

iii. Motions

Prior to getting to trial, the parties will usually file one or more motions in a case. A **motion** is a written request to the court asking it to do something. Common motions are: motion to dismiss, motion for summary judgment, motion in limine, motion for sanctions, motion to compel, etc. Anytime a party wants the court to do something in the case, a motion is usually the method to ask the court to act. In most cases, there is a time period in which a party may file its motions pre-trial. During trial, motions are made orally before the court and the court may rule on them during the trial or may reserve their ruling until a later time in the case.

Motion to dismiss - asking the court to dismiss all or some of the claims the plaintiff or prosecution filed against the defendant for various reasons, such as the plaintiff has no cause of action, the statute of limitations has run on the claim, the defendant was not properly served, the court lacks jurisdiction (either personal or subject matter jurisdiction). This motion is considered by the court based on the information filed in the complaint and sometimes the defendant's answer.

Motion for summary judgment- asking the court to issue judgment in favor of the party filing the motion for all or part of the case. This motion differs from a motion to dismiss in that either party - plaintiff or defendant - may file it and it requires the court to review information outside of the original complaint and answer to decide it.

Motion in limine- a pretrial motion asking the court to do something, such as excluding certain evidence from trial or excluding certain witness testimony from trial as irrelevant.

Motion to compel- asking the court to require the other party to do something, such as to provide answers to interrogatories if the party receiving the interrogatories refuses to provide answers.

Motion for sanctions- asking the court to issue various penalties against a party for failing to comply with an order of the court. Sanctions can include monetary penalties, default judgment, and/or the exclusion of certain evidence, witnesses, defenses, etc. from trial in the case.

During the pre-trial phase of litigation, the parties are encouraged to meet to discuss possible settlement. The court may hold a formal **settlement conference** between the parties as part of this process. If settlement cannot be arranged, then the parties will usually meet with the trial judge at a **pre-trial conference** to finalize any open matters before trial, settle on witness lists, ensure exhibits (evidence to be entered at trial) has been exchanged, agree on any matters that do not need to be litigated - are there common facts the parties consent to, etc.

iv. Joinder of Parties

A single lawsuit may involve more than one plaintiff and/or more than one defendant if their claims arise from the same transaction or occurrence and their claims present a common question of law or of fact that applies to all parties. This condition is termed as a *permissive joinder*. The parties MAY all join together in one lawsuit, or they may file separate lawsuits. If the case CANNOT be decided without all of the individuals as parties - joinder is known as *mandatory*.

v. Prohibitions

Sometimes even though a person wants to file a lawsuit and appears to have a valid claim, litigation is prohibited. The two most common reasons are *statute of limitations* and the doctrine of *res judicata*.

Statutes of limitations, set by the federal and state legislatures, set forth the requirement that certain types of civil actions be filed within a fixed time after the cause of action occurs. The *statute of limitations* differs from state to state and with the federal government; it also varies according to the type of case.

EXAMPLE- A state may set a four-year limitation on oral contracts cases, a five-year limitation on written contracts cases, and a two-year limitation on malpractice claims. Another state may set a three-year limitation on oral contracts, a two-year limitation on written contracts, and one-year limitation on malpractice claims.

When a complaint is not filed within the prescribed statute of limitation period of that state, the claims are barred, and the plaintiff loses the right to sue.

Opposite from a statute of limitations, when a final judgment has been rendered in a case, the doctrine of *res judicata* prevents the same facts from being re-litigated again between the same parties. *Res judicata* means “the thing adjudged.” This doctrine is applicable to a final judgment on the merits of a case, to a motion for summary judgment, and to a dismissal with prejudice to future action. *Res judicata* does not prevent an appeal or a new trial being ordered by the trial court as a result of a motion or an appellate court through an appeal. In order for *res judicata* to apply, the parties in the second lawsuit must be identical to those in the first or be in privity with the original parties, and the facts must be identical to the first lawsuit.

EXAMPLE - A plaintiff files suit against a car mechanic in district court arguing the mechanic breached the repair contract for car repair because they did not properly repair the car. If the plaintiff loses the case, they cannot file another case against the same mechanic, now arguing the mechanic was negligent (a tort claim) in the repair of the car.

2. Trial

After all pre-trial matters have been concluded, a case is set for trial. Trials can either be before a judge (bench trial) or a judge/jury. As noted above, when only a judge hears the case, it will decide all issues of law and fact in the case. When the case is before a judge and jury, the judge will decide any legal issues in the case and the jury will decide the facts and apply the law to the facts to reach a verdict. Once the jury reaches its verdict, the judge will then issue judgment based on the verdict.

In civil cases, for the plaintiff to win most cases require that the plaintiff establish its case by a **preponderance of the evidence** standard (aka more likely than not). This means the plaintiff must show that it is more likely than not that the defendant is responsible for the plaintiff's injuries. In numerical terms preponderance of the evidence is established by a 51%-49% standard.

In some civil cases, usually those involving fraud, the burden of proof is a little higher and the plaintiff must establish the defendant's liability by **clear and convincing evidence**. This standard is higher than preponderance of the evidence, but less than the criminal standard of

beyond a reasonable doubt. In numerical terms, clear and convincing evidence has been likened to a 75%-25% standard. When a civil case is before a jury, civil trials are not required to have a unanimous jury depending on the court rules for that state. In criminal cases, a unanimous jury is required for a conviction.

At trial, the plaintiff presents its evidence first and then the defendant can present its defense. The breakdown of the stages of a civil trial is:

1. Opening Statements of each side if a jury trial (sometimes waived or defendant will reserve their opening statement to the start of the defense's case). If a bench trial - normally there are no opening statements.
2. Plaintiff presents its case in chief first- evidence and witnesses
 - a. Plaintiff does direct examination of its witnesses
 - b. Defendant then does a cross examination of the plaintiff's witnesses
3. At conclusion of plaintiff's case - plaintiff will rest its case
4. Defendant then usually requests an oral motion for a directed verdict (this is a motion asking the court to rule in the defendant's favor arguing the plaintiff has not met its burden of proof)
5. The court will normally deny the motion for a directed verdict
6. Defense then presents its case - evidence and witnesses
 - a. Defense does direct examination of its witnesses
 - b. Plaintiff cross examines defense's witnesses
7. Once defense is done- it will rest its case
8. Closing arguments are then given by plaintiff and defendant if in a jury trial. In a bench trial, there are usually no closing statements.
9. If a jury trial – the court will ask both sides to provide proposed jury instructions for instructing the jury on the law. Court will then determine final jury instructions to provide the jury in deciding the case.
10. The jury will deliberate and make a decision (aka reach a verdict).
11. The judge will then render judgment based on the jury's verdict.

3. Damages and Equitable Remedies

The court must decide the type of relief a winning party is entitled to receive in a civil case. A basic maxim of law for centuries has been, "*For every right, there is a remedy.*" In part, what the plaintiff is asking the court for dictates the remedy. In most cases, when a plaintiff seeks damages, the amount, if any, to be awarded is left for a jury or judge to determine. The judge's duty is to ensure the remedy awarded is permissible under the law. In civil cases, the goal of a court is to restore the injured party to their previous status, *status quo*, as though the injury had not occurred. In the event a statute specifies a certain remedy, the court must adhere to the statute. However, without a statutory defined remedy, the court relies on common law principles to determine the type and amount of relief deserved. Whether the case is at law or in equity significantly influences that decision.

There are three basic types of money damages: compensatory, punitive, and nominal.

i. Compensatory Damages

As a general rule, compensatory damages focus on a plaintiff's losses. Compensatory damages are classified as either general damages or special damages. The losses that any reasonable person in the plaintiff's situation would incur are called general damages, such as pain and suffering. Losses that are unique to a particular plaintiff are referred to as special damages. Special damages include medical costs, lost wages, property damages, etc. Although the basis for the losses is different, the goal of these damages is the same—compensating the plaintiff for the defendant's wrongdoing.

ii. Punitive Damages

Punitive damages, also referred to as exemplary damages, is meant to punish the defendant for particularly bad, contemptible conduct. For example, punitive damages may be awarded when an individual causes injury while driving under the influence of a controlled substance. Punitive damages are awarded in addition to compensatory damages but cannot be unlimited and must bear some rational relationship to the amount of compensatory damages in a case.

The US Supreme Court established three "guideposts" with regards to punitive damages in the case of *BMW of North America, Inc. v. Gore*, 517 U.S. 559 (1996), to determine whether punitive damages awarded violate due process. These guideposts focus on the reprehensibility of the defendant's conduct, the ratio of punitive damages to the actual harm, and the comparison of punitive damages to other civil or criminal penalties for similar misconduct.

Reprehensibility of the Defendant's Conduct: This guidepost considers the nature of the defendant's actions, including whether the harm caused was physical or economic, whether the conduct demonstrated indifference or reckless disregard, and whether the target was vulnerable.

Ratio of Punitive to Compensatory Damages: This guidepost examines the relationship between the punitive damages awarded and the actual harm suffered by the plaintiff. As stated above, there must be some rational relationship between punitive and compensatory damages. A court would not be able to award \$100 in compensatory damages and \$1 million in punitive in the same case.

Comparison to Civil and Criminal Penalties: This guidepost compares the punitive damages awarded with the penalties that could be imposed in comparable civil or criminal cases. Again, the goal is a rational relationship.

iii. Nominal Damages

The intent of nominal damages is to acknowledge that the plaintiff's rights have been violated, but there is no monetary loss to the plaintiff as a result. In such a case, the court usually awards a trivial amount of nominal damages in addition to court costs, such as \$10. The court may award nominal damages in either contract or tort cases.

iv. Equitable Remedies

When money damages are inadequate to make the plaintiff whole, courts fashion equitable remedies to achieve this result. To obtain an equitable remedy, a plaintiff must demonstrate to

the court that they have no adequate remedy at law. In other words, the plaintiff must demonstrate that money cannot compensate for the injury.

Two main types of equitable remedies are injunctions and specific performance. Injunctions are court orders to stop doing something. An order for specific performance is a court order to do something.

EXAMPLE - If your neighbor plays music at 2:00am each day at volume 10, waking you up and impacting your sleep, no amount of money damages will make you whole. You would need an injunction from the court mandating your neighbor stop playing their music after 11:00pm to solve your problem. No amount of money the court could order would remedy the issue of your neighbor's nightly music. Only a court order to stop the conduct will make you whole.

EXAMPLE - If you enter into a contract to buy a house and the seller decides they do not want to sell their house to you before you go to final closing, you can petition a court for an order of specific performance, demanding the seller sell you their home per your contract.

3. Post trial Motions and Appeal

i. Post trial Motions

After final judgment, the losing side in a civil or criminal case has two options: 1) file post-judgment motions in the trial court; and/or 2) file an appeal with the appellate court. Depending on the issues at trial, some parties choose to do both – file post judgment motions and appeal; some parties move forward with just an appeal. Typical post-judgment motions include:

- Motion for judgment notwithstanding the verdict (JNOV)
- Motion for new trial
- Motion to alter or amend a judgment

A motion for JNOV can only occur in a jury trial where the losing party filing the motion is arguing that the jury's verdict went against the weight of the evidence. A motion for a new trial is simply that – the losing party is arguing that some error occurred at trial or new evidence was discovered after trial that was not available at the time of trial that is relevant to the case. This motion can be made with jury trials and bench trials. Finally, a motion to alter or amend the judgment is made where either party – the winner or the loser- is asking to court to make some change to the judgment. The change could be to reduce the amount of damages, to change other aspects/terms of a judgment award, such as an injunction, etc. Usually, one or more of the post-trial motions are filed together. In Maryland, most post-trial motions must be filed within ten days of the judgment or the right to file the motion is lost.

After final judgment is rendered by the court, the losing party may appeal the decision to an appellate court. In some instances, even the party who won at trial may file an appeal, if they did not win on all of their claims, appealing the claims they lost. If the defendant in a criminal case is

convicted (found guilty), the defendant has a right to appeal the conviction. If the defendant is acquitted (found not guilty), the state has no right to appeal of the acquittal- the case is over.

Under our legal doctrine of double jeopardy as espoused in the Fifth Amendment, the defendant cannot be retried on those charges again by the same state, even if additional evidence becomes known later that establishes the defendant's guilt beyond a reasonable doubt. The only exception to double jeopardy is that an individual may be tried by two or more different states, including the federal government, for what is in essence the same crime. That is not a violation of double jeopardy.

EXAMPLE- If you kidnapped a person in Maryland and took them to Pennsylvania, continuing to hold them against their will, and were arrested in Pennsylvania for the crime, both Maryland and Pennsylvania can charge and try you in court for the crime of kidnapping. This is because Maryland and Pennsylvania are separate "sovereigns." Your act was a violation of the laws of both states.

EXAMPLE – If you committed an act of terrorism in Maryland – mailing pipe bombs to business owners you did not agree with, and you were arrested, both Maryland and the US governments can charge you with crimes. Maryland and the federal government are separate "sovereigns." If your act was a violation of both state and federal laws, you can be tried by both entities.

Usually, issues of judicial economy arise in these cases, and one "sovereign" will take the lead in trying the case and the others will "stand down" and only bring charges if there is an acquittal, a really lenient sentence is handed down with a conviction, or the case is of particular importance. An example would be the Luigi Mangione case in New York where Mr. Mangione is being tried by both the State of New York and the U.S. government for actions related to the murder of a health care CEO. This case is one that has re-introduced the argument by some that charges by the state and federal government for what is really the same crime should be in violation of the double jeopardy clause of the Fifth Amendment.

In a civil case, either the plaintiff or defendant can appeal if they lose all or even part of the case. Appeals review questions of law from the trial court. Appellate courts do not consider questions of fact from the case. The reason is that the judge or jury was in the best position to determine the facts from listening to the witness testimony, determining who was credible or not, and reviewing the evidence. There are no new evidence or witnesses presented on appeal. The only time an appellate court examines the facts in a case is if the factual decisions made at trial were clearly erroneous.

Most states have a two-level appellate system. A lower-level appellate court to which appeals are made as a matter of right. If you lose all or part of the trial court case, you have an absolute right to have the lower-level appellate court hear your appeal (except for the state in a criminal case as noted above). In Maryland, this court is called the Appellate Court of Maryland (formerly the Court of Special Appeals).

Whichever party loses the first appeal to a lower-level appellate court, they can then ask a higher-level appellate court in their state, usually the state's supreme court to hear their appeal (review the loss at the lower-level appeals court). In Maryland, our highest state court is the Supreme Court of Maryland, formerly known as the Court of Appeals. This second appeal is not an automatic right (usually), but a request through a writ of certiorari (also known as a writ of cert). The supreme court judges will vote to decide whether or not to hear the appeal. If the writ of certiorari is granted, then the party who lost at the lower-level appellate court will get the chance to overturn lower appellate court's decision. If the writ of certiorari is denied, then the appeal process is usually done. In some limited instances, where a state case involves a constitutional issue, a party whose writ of certiorari is denied or a party who loses an appeal to a state supreme court, may then appeal to the U.S. Supreme Court.

ii. Disposition by Appellate Court

An appellate court typically makes one of the following decisions when ruling on an appeal:

1. **Affirm** the lower court decision if, upon review of the record, the appellate court concludes that findings of fact were not clearly erroneous and that no prejudicial errors of law were made. The majority of appellate cases are disposed of in this way.
2. **Reverse** the lower court decision if, upon review of the record, the appellate court concludes either that findings of fact were clearly erroneous or that prejudicial errors of law were made, and the facts in the record are sufficient for the appellate court to render a fully informed judgment on the merits.
3. **Reverse and remand** with instructions for further proceedings if, upon review of the record, the appellate court concludes either that findings of fact were clearly erroneous or that prejudicial errors of law were made but the facts in the record are *insufficient* for the appellate court to render a fully informed judgment on the merits.

EXAMPLE- If the appellate court reverses the trial court's summary judgment (meaning the case was decided before a trial on the merits), the record will not contain sufficient facts to render a fully informed judgment on the merits since the case was never heard at trial. In that situation, the case will be remanded to the trial court for further proceedings in the case, specifically, a trial.